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JUDGMENT SHEET
IN THE LAHORE HIGH COURT
LAHORE.
JUDICIAL DEPARTMENT.

Case No:ICA No.187/2011.

Rana Khadim Hussain

Vs.

**Secretary, Population Welfare Department,
Government of Punjab etc.**

JUDGMENT

Date of Hearing	02.10.2014.
Appellant by	Ms. Erum Sajjad Gull, Advocate.
Respondent by	Ms. Hina Hafeezullah Ishaq, Asst. A.G. Punjab.

ABID AZIZ SHEIKH, J. Through this Intra Court Appeal, the appellant has assailed order dated 02.03.2011 passed by learned Single Judge whereby the constitutional petition of the appellant was dismissed against order dated 16.11.2010 refusing dues of Benevolent Fund (B.F.) of Mst. Balqees Akhtar, deceased wife of appellant.

2. Brief facts are that wife of appellant Mst. Balqees Akhtar was serving as Family Welfare Worker (FWW) in District Sheikhpura. During employment, she died on 29.01.2002. The appellant being sole heir filed an application with the department for payment of

her dues including G.P. Fund, Pension, Gratuity, Group Insurance and Benevolent Fund etc. The respondents paid all dues except Group Insurance and Benevolent Fund. The appellant being aggrieved filed writ petition No.5643/2003 which was disposed of vide order dated 19.09.2003 with direction to the department to decide the application of the appellant in accordance with law. Accordingly, the respondents released the Group Insurance dues, however, B.F. which was due for 10 years, was paid only from 29.01.2002 to 31.12.2007. The appellant filed yet another writ petition No.14906/2010 for release of remaining amount of B.F. which was disposed of with direction to respondents to decide the matter in accordance with law. The appellant was given a hearing and vide order dated 16.11.2010, the remaining amount of B.F. was refused. The appellant being aggrieved filed writ petition No.4355/2011 which was dismissed by Single Judge vide impugned order dated 02.03.2011, hence this appeal.

3. Learned counsel for the appellant argued that under Rule 21 of Punjab Population Welfare Department Benevolent Fund Rules, 2005 (Rules), the widower is entitled for B.F. of his deceased wife subject to condition that he does not remarry. Submits that as the appellant got married second time on 10.05.1991, while Mst. Balqees Akhtar was still alive, it cannot be said that appellant remarried after her death, therefore, there appellant could not be disentitled under Rule 21 of the Rules. Further argued that once the department has already paid major part of B.F. dues to the appellant commencing from 29.01.2002 till 31.12.2007 out of a total of 10 years of B.F entitlement, respondent department was estopped from changing its position, hence the impugned order is not sustainable.

4. Conversely, the learned counsel for the respondents argued that the appellant having two wives, was still married when Mst. Balqees Akhtar passed away on 29.1.2002, therefore, he was not a widower under rule 21 of the Rules. Further argued that payment of B.F. was subject to submission of no marriage certificate which was not submitted earlier by the appellant, however, when the said certificate was submitted, it indicated that he got second marriage on 10.05.1991, which fact was concealed by the appellant while applying for grant of B.F. and other pensionary benefits. Therefore, the matter was again placed before the Board which after clarification from the Regulation Wing, S&GAD, rejected the claim of the appellant under rule 21 *ibid* on the ground that appellant's second wife is still alive. Submits that the impugned order is well reasoned and therefore, this appeal is liable to be dismissed.

5. We have heard the learned counsel for the parties and examined the record with their able assistance.

6. There is no dispute that the appellant got married second time on 10.05.1991. Mst. Balqees Akhtar, the first wife, died on 29.01.2002 and at the time of her death the appellant's second wife was still alive and he was duly married. Rules 20 and 21 of the Rules which deals with payment of B.F. is reproduced hereunder:-

“20. An application for a grant under these rules, shall be made to the Chairman of the Board in the form set out in Appendix-A and shall be submitted by the applicant through the Head of Office in which such Government servant was employed at the time of his/her retirement, death of invalidation during service before retirement.

21. Where a grant under these rules has been sanctioned in favour of a widow/widower, such grant shall be

subject to the condition that the widow/widower does not remarry. Such widow/widower shall after every six months furnish to the Board a certificate in the form set out in Appendix-B duly attested by the Head of Office. On remarriage of the widow/widower during the period of such grant, the grant shall be transferred/paid to minors through guardian appointed by court and if there are no minors in the grant shall cease forthwith.”

7. A bare perusal of rule 21 shows that the grant under Rules was to be sanctioned in favour of widow/widower subject to condition that the widow/widower does not remarry and shall also submit a certificate to Board in this regard after every 06 months. Once the appellant was already married, at the time when Mst. Balqees Akhtar died on 29.01.2002, he could not be treated as “widower” at the first instance. The word “widower” has not been defined under Rules, however as per its ordinary dictionary meaning in “Oxford” and “Collins” dictionaries, it means **a man whose wife is dead and who has not remarried**. Applying the aforesaid ordinary dictionary meaning of word “widower” to the case of appellant, it cannot be said that appellant was “widower” as he was not only duly married at the time of death of Mst. Balqees Akhtar but the other wife was also alive. The learned counsel for the appellant tried to argue that as per definition of word “Family” given in rule 2(f) of the Rules, the “wife” or “wives” are to be treated as family and on the death of husband, all the “wives” are treated as widows and entitled for B.F, therefore, on the same analogy, a husband who may have more than one wife should also be treated as “widower” on death of one of the wives. We are afraid this argument is misconceived, as wives who have only one husband, in case of his death, will indeed be treated as “widows”

however, a husband who has more than one wife, on death of one of the wife, cannot be treated as a “widower”.

8. Learned Single Judge has also rightly observed that B.F. is meant to provide financial support and compensation to widow/widower who has been living alone after demise of his/her spouse, so that he may utilize such fund to rebuild her/his life and spend the same on children that the family may have. The condition in Rules that claimant would be disentitled to receive the grant after remarrying and it will transfer to minors if any, clearly indicate that having marital life after death of deceased wife is an automatic disentitlement for the said grant of B.F.

9. In view of above discussion, we found no illegality in the impugned order and **this appeal** having no merits is **dismissed** accordingly.

(Syed Mansoor Ali Shah)
Judge

(Abid Aziz Sheikh)
Judge

Approved for Reporting.

Judge

Judge